EPM Staffing Services (OPC) Private Limited

CIN U78100MN2025OPC015365

Phone:+91 9862279597
Email:
Address: Imphal West, Imphal, Manipur, India, 795001
Website:

EMPANELMENT AGREEMENT

Logo

[Your Company Name]

[CIN CIN]

This Company Empanelment Agreement is made and executed on (DD-MM-YYYY)

BY AND BETWEEN

EPM Staffing Services (OPC) Private Limited, incorporated under the provisions of the **Companies Act, 2013 / Indian Partnership Act, 1932** (as applicable), having its registered office at ***C/o Joyprakash Kwakeithel, Moirang Purel Leikai, Tera, Imphal West, Imphal, Manipur, India, 795001,*** hereinafter referred to as the "**Staffing Agency**".

AND

(Your Company Name), a company incorporated under the provisions of the Companies Act, 2013, having its registered office at **(Address),** hereinafter referred to as the **"Client"**

EPM Staffing Services (OPC) Private Limited and **(Your Company Name),** shall collectively be referred to as the "**Parties**" and individually as a "**Party**".

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1. Job Requirement Sharing & Candidate Submission

- **[Your Company Name]** will share its job requirements with **EPM Staffing Services (OPC) Private Limited**. In response, **EPM Staffing Services (OPC) Private Limited** will source and submit qualified candidates to fulfil staffing needs across various roles for **[Your Company Name]**.
- The process followed by **EPM Staffing Services (OPC) Private Limited** focused on **quality, efficiency, and timeliness**, ensuring the delivery of candidates who align with **[Your Company Name]**'s requirements, expectations, and workplace culture.

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2. PAYMENT TERMS

1. **Professional Fee**

For each successful hire made by **[Your Company Name]** of a candidate submitted by **EPM Staffing Services (OPC) Private Limited**, **[Your Company Name]** agreed to pay a one-time fee equivalent **to 8% of the candidate's Cost to Company (CTC).**

The fee shall be deemed earned subject to the completion condition stated below.

2. **Payment Timeline**

The above fee shall be payable within **45 to 60 days from the date of the candidate's joining,** provided the candidate fulfils the minimum service requirement.

3. **Minimum Service Requirement (45 Days Condition)**

The professional fee shall become payable only if the placed candidate successfully completes a minimum period of 45 working days with **[Your Company Name]** from the date of joining.

In the event that the candidate:

- Resigns voluntarily before completing 45 working days;
- Is terminated for performance issues, misconduct, or policy violations; or
- Otherwise fails to complete 45 continuous working days with **[Your Company Name]**;

Note: No fee shall be payable to EPM Staffing Services (OPC) Private Limited, and any invoice raised before the completion of 45 days shall stand null and void without any financial liability on the part of **[Your Company Name]**.

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3. Candidate Submission & Interview Scheduling

- Candidates submitted by **EPM Staffing Services (OPC) Private Limited** will be provided **without contact details**. If a candidate is shortlisted and shows interest by **[Your Company Name]**, **[Your Company Name]**, will coordinate with **EPM Staffing Services (OPC) Private Limited** to schedule an interview (**Online/Phone/Offline**). At this stage, **[Your Company Name]** may request the candidate's contact details solely for communication purposes related to the recruitment process.

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4. Late Payment Policy & Legal Implications

In the event **[Your Company Name]** fails to make the agreed one-time payment of 8% of the candidate's annual CTC within the stipulated 60 days period, a **penalty of 10% of the outstanding payable amount shall be levied for every month of delay**, calculated from the due date until full and final settlement.

The penalty shall accrue automatically without the requirement of further notice and shall be recoverable as a contractual debt

4.1. Continued Default

If the **[Your Company Name]** continues to default in payment beyond the agreed credit period, such default shall constitute a material breach of this Agreement.

In such circumstances, **EPM Staffing Services (OPC) Private Limited** shall be entitled, without prejudice to its other rights and remedies, to:

- Suspend ongoing recruitment services.
- Withhold further candidate submissions.
- Recover the outstanding amount along with accrued penalties and interest.

4.2. Legal Recovery Proceedings

In case **[Your Company Name]** continues to fail to honour payment obligations, **EPM Staffing Services (OPC) Private Limited** reserves the absolute right to initiate recovery proceedings under applicable Indian laws, including but not limited to:

- The Indian Contract Act, 1872 – for the enforcement of contractual obligations and damages for breach of contract.
- The Code of Civil Procedure, 1908 – for filing civil recovery suits, summary suits, attachment proceedings, and execution of decree.
- The Arbitration and Conciliation Act, 1996 – for initiation of arbitration proceedings where an arbitration clause exists in this Agreement.

All legal costs, court fees, arbitration expenses, advocate fees, and incidental expenses incurred in recovery shall be borne by [Your Company Name].

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5. Candidate Ownership Period

- All submitted candidates shall remain under the **ownership of EPM Staffing Services (OPC) Private Limited for a period of 60 days** from the date of submission. Any hiring decision made within this period will be subject to the payment terms outlined in this agreement.

Acknowledgment

- By entering into this agreement, both parties affirmed their commitment to mutual respect, collaboration, and the terms outlined above.

Director
EPM Staffing
Services (OPC) Pvt. Ltd.

(Dangshawapipa Angrung)
Director
EPM Staffing Services (OPC) Private Limited

(Signature of Competent Authority)

(Name)

(Designation)

(Your Company Name)